IN THE SUPERIOR COURT OF JUDICATURE, IN THE HIGH COURT OF JUSTICE (FAMILY COURT DIVISION 1), ACCRA HELD ON THURSDAY THE 29TH DAY OF JANUARY, 2026 BEFORE HER LADYSHIP EUDORA CHRISTINA DADSON (MRS), JUSTICE OF THE HIGH COURT

SUIT NO: DM/0295/2025

IN THE MATTER OF ERNEST NANA ADJEI V. SANDRA ADJEI

REPUBLIC

VS

ERNEST NANA ADJEI - RESPONDENT

EXPARTE:

SANDRA ASIEDU ADJEI - APPLICANT

PARTIES: PRESENT.

COUNSEL: KWABENA KWADADE FOR THE APPLICANT – PRESENT.

AKWASI OPOKU AGYEMAN FOR RESPONDENT – PRESENT.

JUDGMENT

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[1] Introduction

Contempt of Court is the only common law offence still known to our law, as same is saved by Article 19(12) of the 1992 Constitution and section 10 of the Criminal and other offences Act,1960 (Act 29). Unlike other countries

where the offence is codified like the English Contempt of Court Act of 1981, ours is still case law.

According to S.A Brobbey in his book on the Law of Chieftaincy in Ghana, page 466, the learned author and former Justice of the Supreme Court of Ghana said that:

"In Ghana, the law of contempt is statutory. The theory, practice and procedure of the law of contempt are however based mainly on the English law of contempt. The statement that the law of contempt is statutory literally means that in this country no conduct can be punished for being in contempt of court unless there is a constitutional or statutory provision that sets up a forum for investigating and punishing it[1].

Black's Law Dictionary 7th Edition, page 313 defines "contempt" as:

1. *"The act or state of despising; condition of being despised.*
2. *Conduct that defies the authority or dignity of a court or legislature".*

According to the learned Author, Justice S.A. Brobbey in his invaluable book, The Law of Chieftaincy in Ghana, page 452 writing on contempt opined as follows:

"in the simplest sense, contempt of court means any conduct that interferes with or undermines the administration of justice. This definition covers criminal as well as civil contempt."

[1] *Derick Adu-Gyamfi, Law & Practice, Relating to motions and affidavits in Ghana (with Precedents) Page 236*

Oswald on Contempt of Court, 3rd ed. at page 6 states as follows:

"To speak generally, contempt of court may be said to be constituted by any conduct that tends to bring the authority and administration of the law into disrespect or disregard, or to interfere with or prejudice parties, litigants or their witnesses during litigation".

Justice Ackah-Boafo HCJ (as he then was) opined in the unreported case of ***Republic versus Kamassah & 4 Others*** (***Suit No: AP 227/2016*** delivered on 11th October 2016 as follows:

"In my respectful opinion, contempt of court is the big stick of civil litigation. Because of the serious nature of a contempt finding, a finding should be made sparingly and only in the clearest cut of cases. A direct intention to disobey a Court order or an act to prejudice a pending application is required and it ought to be a willful disregard of the order or prejudice the outcome of a pending suit in the Court".

[2] Background and affidavit evidence of the Applicant

The Applicant filed a motion on notice for committal for contempt of court pursuant to Order 50 of CI 47 on 28th November 2025. The Applicant prayed for an order to commit Respondent to prison for Contempt of Court According to Applicant the Respondent herein instituted divorce proceedings against her on 17th March 2025. On 11th August 2025, the

Applicant filed an application for an Order of Interim Custody and maintenance of the children of the marriage, pending final determination of the matter. The Court presided over by Mrs Dorothy A. Kingsley-Nyinah, J. on 21st October 2025 awarded interim custody and maintenance of the children of the marriage, with reasonable access granted Petitioner/Respondent and monthly maintenance of three thousand Ghana Cedis (GHC3,000) in favour of Applicant.

The Petitioner/Respondent and his Counsel were present in Court on 21st October 2025 when Mrs. Dorothy A. Kingsley-Nyinah J. delivered her ruling on the Application for an Order of Interim Custody and Maintenance of the children of the marriage filed by the Applicant, and to the best belief of Applicant, Petitioner/Applicant has since obtained a copy of the ruling of the Court.

The pith and substance of the application can be found in paragraphs 9 to 20 of the affidavit in support.

[2.1] Respondent's Affidavit in opposition

The Respondent opposed to the instant application filed 18-paragraph affidavit in opposition. The Respondent states that after the Court's ruling on 21st October 2025 he filed intervening applications aimed at varying the

Court's orders. The gravamen of the opposition can be found in paragraphs 6 to 18 of the affidavit in opposition.

[3] Submission of Counsel

The arguments in support and opposition of the instant application is captured in the submission of Counsel which is set down below:

[3.1] Counsel for the Applicant

On 21/10/2025 this Honourable Court granted an order of interim custody and maintenance to the Applicant. Post 21/10/2025, Respondent has filed three separate applications to essentially prevent the Applicant from reaping the fruits of orders handed down by this Court. But for My Lady's intervention of 21/11/2025 where my Lady directed Counsel to manage the interim custody and maintenance process, the Applicant would have been denied access to the third child of the marriage when in deed, Applicant has a lawful Order by this Honourable Court for interim Custody and Maintenance of the children of the marriage.

Applicant in effectuating the Orders of this Court caused letters to be written to Counsel for the Respondent and authorities of the schools where the children of the marriage currently attend. It is regrettable to note that authorities of the school have consistently denied Applicant access to the children within the policies of the school. The Authorities of the schools

indicate that they have been advised by the Respondent not to respect the order of the Court and prevent the Applicant from having access to the children.

We refer to our Exhibits 3, 4 and 5 which are letters to the school authorizes and Counsel for Respondent. We believe that until this Honourable Court cites Respondent for contempt, Respondent will continue to disregard and disrespect the orders of this Court bring the administration of justice into total opprobrium and disrepute.

[3.2] Counsel for the Respondent

We are opposed to the application. And our opposition in contained in our opposition filed on 3rd December 2025. Subsequent to the orders made on 25th December 2025 the Respondent duly informed the authorities of the two educational facilities involved of the Orders of the Court. Also on the 21st of November, 2025 the Respondent openly informed the Court and the Applicant that one of the educational facilities involved was going to receive visitors on 30/11/2025. That school being a boarding facility, it was up to the Applicant to take advantage of the visiting hours and see the two children of the marriage. My Lady, in particular, regarding the last child of the parities, subsequent to the order of 21/10/2025 in open Court, the parties were advised to take steps to ensure that that child of the marriage be taken to the Applicant's residence to spend the weekend. Based on that

understanding therefore, the child was made available to the Applicant after which she indicated that she was unable to return the child on Sunday but rather will do so by returning the child directly to school on Monday. On Monday, 24th of November, 2025 the Applicant indicated that she was minded to pick the child up from school in accordance with the orders made on 21st October, 2025 and not in adherence to the directives and understanding as between the parties and the Court on the 21st of November, 2025.

We say that the actions of the Respondent have at all times been actuated by deep respect for the Court and its processes. We say finally that the Applicant in deciding not to adhere to the directives and understanding as between the parties and the Court acted in bad faith and therefore we pray that the application be refused.

[4] Court's Analysis and opinion

So what constitutes contempt in Ghana?

In **R v SITO I; EX PARTE FORDJOUR (2001-2002) SCGLR 322** the Supreme Court gave the elements constituting the offence of contempt as that:-

a) there should have been a judgment or order which required the contemnor to do or abstain from doing something;

b) the contemnor knew what precisely he was expected to do or abstain from doing; and

c) that he failed to comply with the terms of that judgment or the order and that his disobedience was willful.

Also, in **IN RE: EFFIDUASE STOOL AFFAIRS (No.2); EX PARTE AMEYAW II SUPRA** Acquah JSC (as he then was) gave an apt summary of the definition of contempt. He said:

"In brief, contempt is constituted by any act or omission tending to obstruct or interfere with the orderly administration of justice, or to impair the dignity of the court or respect for its authority."

In the Supreme Court decision of **THE REPUBLIC v. BANK OF GHANA & 5 OTHERS; EX PARTE BENJAMIN DUFFOUR [2018-2019] 1 GLR 445,** the apex Court speaking through Baffoe-Bonnie, JSC (as he then was) stated that:

"A respondent to a contempt proceeding may be found guilty in many ways. The party may be found guilty of direct contempt or indirect contempt which may be proved depending on the facts of the case in several ways. The proof of direct contempt seem not to be as burdensome as proof of indirect contempt. In most cases direct contempt such as insulting the judge or a party to a proceeding, or committing acts of violence in court, the judge has the advantage of having a firsthand view of the act constituting contempt. The opposite can be said of indirect

contempt where the Court will have to rely on the testimony of third parties to prove the offense of contempt".

His Lordship further stated after examining the standard of proof in a contempt proceeding that: *"Contempt many be committed intentionally or unintentionally. It is no defence to a charge of contempt for a party to prove he did not intend to commit contempt of Court."*

In **Republic v Moffat; Ex parte Allotey [1971] 2 GLR 391**, it was held that it was no defence for a party facing attachment for contempt to swear to an affidavit deposing that he did not intend to commit contempt of court.
Intentional contempt may arise in two ways:

- Where a party willfully disobeys an order or judgment of a court, and
- Where a party knowing that a case is sub judice, engages in an act or omission which tends to prejudice or interfere with the fair trial of the case despite the absence of an order of the court.

By definition and based on the principles articulated in the above cases, a person commits contempt of court if he has willfully and/or intentionally disobeyed an order of Court requiring him to do an act other than the payment of money or to abstain from doing some act.

See also the Supreme Court case of **REPUBLIC v. BOATENG & ODURO; EX PARTE AGYENIM-BOATENG & OTHERS [2009] SCGLR 154**. To hold a party liable for contempt however, the rule is that the order sought to be enforced should be unambiguous and the party must be aware of the order and must be clearly understood by the party concerned.

See also the case of **R v. HIGH COURT ACCRA, EX PARTE LARYEA MENSAH (1998-99) SCGLR 360**.

"In sum, therefore, any act or omission done to prejudice the fair trial or outcome of a case, or likely to bring the administration of justice into disrepute or interfere with any pending litigation and or to scandalize a court even after the trial of a case is contemptuous of the court. Also, wilfulness is required in the sense that the conduct alleged to be contemptuous must be deliberate and not accidental. Contempt of court therefore serves the primary function of protecting the sanctity and integrity of the court and court proceedings and it also serves to sustain the rule of law, a check on conduct that potentially renders civilized society vulnerable to the dynamics of a Hobbesian state of anarchy and chaos. I take the liberty to add that the feature of contempt does not serve the ends of judicial aggrandizement. Rather, it is a safeguard to ensure that might is not right. Without contempt as a Sword of Damocles, bullies in our society will run roughshod over the marginalised[2]*."*

[2] Per Justice Ackah-Boafo J (as he then was) in the case of: *The Republic v Kamal Penchstein In Re Contempt – Suit No: CR0253/2020 (Unreported):*See the case of: *The Republic vs Justice Hagan; Ex Parte: Kwadwo Kanpordina and Sarah Kanpordima, CR 1568/2018, 11TH April 2019*

[4.1] Burden of proof in Contempt Application

Contempt of court is a quasi-criminal and the punishment for it may take various forms including a fine or imprisonment. The standard of proof required is that of proof beyond reasonable doubt. Thus in **Re Bramblevale Ltd [1969] 3 All ER 1062 CA** the appellant, the managing director of a company which had gone into liquidation, failed to comply with the registrar's order calling on him to produce the company's cash book and the creditor's ledger. The High Court regarded the defendant's explanation that the books had been soaked in petrol in the boot of his car and had then found their way into a dustbin before the deadline for producing them as "a cock and bull story". He was accordingly committed to prison for an indefinite time, the court evidently being of the opinion that the books were still in his possession. On appeal, the Court of Appeal regarded that conclusion as being based on "surmise rather than proof" and ordered for his immediate arrest. Winn LJ at page 1064 said:

"…unless the guilt of the appellant was proved with such strictness of proof as is consistent with the test 'beyond reasonable doubt', or as Lord Denning, MR, has more than once put it, consistent with such as the court, with its responsibility, regards as consistent with the gravity of the charge – a charge which I personally prefer – the decision that he should be imprisoned for contempt of court cannot be sustained".

In the case of **Kyereh v Kangah [1979] GLR 458** the Court held that *"to obtain a committal order for contempt, the applicant must strictly prove beyond reasonable doubt that the respondents had willfully disobeyed and violated the court order."*

In the Supreme Court case of **Republic v Bank of Ghana, Ex parte Benjamin Duffuor [2018]123 GMJ 205 SC**, the court per Baffoe-Bonnie JSC (as he then was), stated as follows on the standard of proof in contempt proceedings as follows: *"The standard of proof in contempt proceeding is well settled. Contempt of court is a quasi-criminal process which requires proof beyond reasonable doubt".*

This is so whether the act complained of is criminal contempt or civil contempt as was rightly stated in ***Commet Products UL Ltd v Hawkex Plastics Ltd [1971] 1 All ER 1141 CA*** where the court held that:
"Although this is a civil contempt, it partakes of the nature of a criminal charge. The defendant is liable to be punished for it. He may be sent to prison. The rules as to criminal charges have always been applied to such proceedings. It must be proved with the same degree of satisfaction as in a criminal charge."

Whether the Applicant has met the onus to be successful

Has the Applicant discharged the onus the law places on her?

Justice Ackah-Boafo in the case of **The Republic vs Justice Hagan; Ex Parte: Kwadwo Kanpordina and Sarah Kanpordima, CR 1568/2018, 11th April 2019** opined on the concept of proof beyond reasonable doubt as follows:

"The concept of proof beyond reasonable doubt is not an easy one to define because it is clearly more rigorous than the balance of probabilities standard applied generally in civil cases. The balance of probabilities requires a party who bears the onus to establish that the proposition he or she advances is "more likely than not". In other words it is more probable or likely or better than 50/50 scenario.

I wish to state that my statement above that because this is a quasi-criminal matter "the standard of proof is one beyond reasonable doubt" and more rigorous does not mean that it cannot be met. Indeed in my respectful opinion when the law speaks of reasonable doubt it is not a fanciful doubt. To paraphrase the Supreme Court of Canada in a case called R. v. VILLAROMAN, [2016] 1 SCR 1000, 2016 SCC 33 (CanLII) at p. 1023,

"A reasonable doubt is a doubt based on 'reason and common sense'; it is not 'imaginary or frivolous'; it 'does not involve proof to an absolute certainty'; and it is 'logically connected to the evidence or absence of evidence' (see also R. v. LIFCHUS, [1997] 3 SCR 320, 1997 CanLII 319 (SCC).

In other words, the reasonable doubt threshold does not require a fantastical suspension of disbelief. It is a doubt that logically arises from the evidence, or the lack of evidence based on common sense and reason.

The presumption of innocence along with the standard of proof beyond reasonable doubt required in a charge of contempt are important safeguards to ensure that no person should be deprived of his liberty or found guilty of the charge of contempt based on wrong or unproven facts in a free and democratic society."

The Applicant contends that the Respondent has willfully and maliciously failed to comply with the orders of the Court of 21st October 2025 by directing 3rd party schools to deny the Applicant access to her children. In proof of these assertions the Applicant tenders in evidence Exhibits 1 to 4. Is there a nexus between the schools failure for the Applicant to see the children and the conduct of the Respondent herein? Were there intervening applications filed after the 21st October 2025 order?

The Respondent contends that his actions were in good faith actuated by the best interests of the children of the marriage, within the limits of the laws of Ghana and not in any way to prejudice or compromise or disrespect or disregard the orders of the court either by his non-compliance or instigating others to do so.

With the contending depositions on oath the burden is cast on the Applicant to prove her depositions beyond reasonable doubt.

As the Supreme Court per Anin Yeboah JSC (as he then was) stated in the case of **Boamah & Ansah Sikatuo V. Amponsah [2012] 1 SCGLR 58 @ page 63-64** in a case where the affidavit evidence presented rival depositions and there were two equally possible situations, the apex Court stated:

"The Court must be satisfied beyond all reasonable doubt that they had done so based solely on the affidavit evidence. There is no room for conjecture and evidence is required to be placed before the Court to enable it come to a decision on the matter. By evidence, we mean proof beyond reasonable doubt. We would add that it was not enough for the purposes of the application for contempt of court with which we are concerned in instant application, to have left the serious depositions of fact at large, as it was not possible to say which of the two versions of the matter was correct. In the absence of further evidence."

I note that despite the paucity of affidavit evidence in support of the charge of contempt, the Applicants and Counsel have implored the Court to convict the Respondent by committing him to prison because his actions is calculated to hinder and reduce the authority of the Court and bring the administration of justice into total opprobrium, scorn and disrepute.

The Supreme Court has held in the case of **Republic v High Court (Fast Track Division) Accra; Ex parte P P E Ltd & Paul Juric (Unique Trust Financial Services Ltd Interested Party) (2007-2008) SCGLR 188,** the

courts should be anxious to contain the power to punish for contempt, (which has been castigated as wide and arbitrary), within the narrowest possible confines in order to safeguard the fundamental constitutional right of the individual to liberty.

[6] Conclusion

Having evaluated the process filed, I am of the respectful opinion that the application filed by the Applicant "fell short of the basics" and therefore same ought to fail.

The Applicant has failed to meet the evidential burden the law places on her. Consequently, the Application for Contempt is **DISMISSED**. In the result, I **ACQUIT** and **DISCHARGE** the **RESPONDENT** on the charge of Contempt of Court.

But, no order as to cost.

(SGD)
H/L EUDORA CHRISTINA DADSON (MRS)
JUSTICE OF THE HIGH COURT